

Opinion of the Court

official papers and communications, *id.*, at 711, it is certainly necessary when the prosecutor seeks to charge, try, and imprison the President himself for his official actions. At a minimum, the President must therefore be immune from prosecution for an official act unless the Government can show that applying a criminal prohibition to that act would pose no “dangers of intrusion on the authority and functions of the Executive Branch.” *Fitzgerald*, 457 U. S., at 754.

But as we explain below, the current stage of the proceedings in this case does not require us to decide whether this immunity is presumptive or absolute. See Part III–B, *infra*. Because we need not decide that question today, we do not decide it. “[O]ne case” in more than “two centuries does not afford enough experience” to definitively and comprehensively determine the President’s scope of immunity from criminal prosecution. *Mazars*, 591 U. S., at 871.

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As for a President’s unofficial acts, there is no immunity. The principles we set out in *Clinton v. Jones* confirm as much. When Paula Jones brought a civil lawsuit against then-President Bill Clinton for acts he allegedly committed prior to his Presidency, we rejected his argument that he enjoyed temporary immunity from the lawsuit while serving as President. 520 U. S., at 684. Although Presidential immunity is required for *official* actions to ensure that the President’s decisionmaking is not distorted by the threat of future litigation stemming from those actions, that concern does not support immunity for *unofficial* conduct. *Id.*, at 694, and n. 19. The “‘justifying purposes’” of the immunity we recognized in *Fitzgerald*, and the one we recognize today, are not that the President must be immune because he is the President; rather, they are to ensure that the President can undertake his constitutionally designated functions effectively, free from undue pressures or distortions. 520 U. S., at 694, and n. 19 (quoting *Fitzgerald*, 457 U. S., at 755). “[I]t